

**THE CONSITITUTION
OF
KIBAALE PARISH OUT GROWERS
ASSOCIATION**

KIBAALE LC1

KIBIGA SUB COUNTY

KIBOGA DISTRICT

Reg 1704



THE CONSITITUTION OF KIBAALE PARISH OUT GROWERS ASSOCIATION

PREAMBLE

We members of the above group having realized the importance and benefits of tree growing, and given the poverty levels in our community we decided to come up with an idea of coming together and join hands to fight poverty through planting trees as out growers of the New Forest Company and besides that, undertaking savings and loan activities in our communities.

Article 1: NAME OF THE GROUP

The group shall be called *Kibaale Parish Out Growers Association*.

Article 2: LOCATION OF THE GROUP

The group is located in *Kibaale parish, Kibiga Sub County, kiboga district*

Article 3: AIMS AND OBJECTIVES

To augment the NFC in tree growing for commercial purposes and to:

- ✓ Improve on the household incomes of group members
- ✓ Start up development projects/ IGAs of group members
- ✓ Start a savings and loan scheme
- ✓ Create income generating activities
- ✓ Promote unity and cooperation among the local members of the community
- ✓ Increase on the house hold incomes

Article 4: THE GOALS OF THE ASSOCIATION

To promote the welfare of its members and the entire community by eradicating poverty through forestry and VSLAs.

Article 5: Membership

Any person will qualify to be a member of this if he/she meets the following;

- ❖ A resident of Kibaale or Kabada
- ❖ Should be an out grower.
- ❖ Should be of sound mind and honest person
- ❖ Should be above 18 years
- ❖ Should have paid membership fee of Shs 10,000.
- ❖ Should be committed to group activities
- ❖ Should abide by the constitution and other rules to the smooth running of the group from time to time

Article 6: ACTIVITIES OF THE GROUP

- Apiary
- Farming
- Business in agricultural produce
- Forestry
- VSLAs

Article 7: SOURCES OF FUNDS FOR THE ASSOCIATION

- Membership fee and subscription fee from members
- Income generating activities of the group
- Fundraising
- Well-wishers of the association
- Donors
- Member savings

Article 8: FINANCIAL MANAGEMENT

- The members resolved that the association shall open savings account in centenary bank kiboga branch.
- The principle signatories to the account shall be the chairperson, the secretary and the treasurer.

- Members shall be allowed to borrow the group funds and any amount borrowed will attract an interest rate of 5 % per month
- Money to be lent to the member shall not exceed three times his/her savings.
- Any member wishing to borrow funds outside the group will be guaranteed by atleast 2-3 members of the group
- Any member who fails to pay his loan from within or outside the group will lead to application of all formal measures in order to recover the loan dues.
- All members shall be allowed to access financial records of the group as a means of transparency.
- The referees seconding a member to acquire a loan from the group shall be held responsible for making sure that the borrower pays back the loan.

Article 9: ELECTION OF MEMBERS

Executive members shall be elected in the meeting where all members are present and election shall be by secret ballots and with a system of one man one vote.

Elections shall be done every after 2 years and a leader will have a chance of two terms once re-elected.

Nonmembers will not be allowed to engage in any election activity of the group such as campaigns as this will lead to disqualification of the member of being elected in any position of leadership.

Article 10: EXECUTIVE COMMITTEE

The executive committee shall consist of the following positions

- Chairman
- Vice chairman
- Secretary
- Treasurer
- Publicity

Article 11: RESPONSIBILITIES OF LEADERS

Chairman

- ✓ He shall be the principle signatory to the account of the group
- ✓ He will be responsible for chairing all group meetings
- ✓ He will be the head of the association
- ✓ Shall be the coordinator of the group and link it to other groups
- ✓ Shall lobby for funds and support for the group
- ✓ Shall do the general administration of the group

Vice chairman

He/she shall preside over and perform the same duties of the chairman in his absence and as when delegated

Secretary

- ✓ Shall write and keep the minutes of the association
- ✓ Shall be principal signatory of the bank account
- ✓ Shall be custodian to all association's documents
- ✓ Shall circulate the required information to all members of the group
- ✓ Shall read the minutes to the members of the group

Treasurer

- ✓ Shall keep all accounts records properly
- ✓ Shall collect the association's membership fees and any financial contribution
- ✓ Shall provide accountability for all group funds
- ✓ Shall be a principal signatory to the association account
- ✓ Shall present the financial reports during the annual general meeting
- ✓ Give necessary information to auditors on the group's financial standings/business transactions

Publicity

- ✓ To organize and mobilize members of the group
- ✓ Shall be the groups spokes person

- ✓ Shall inform the members on all the meetings as decided upon by the executive committee members
- ✓ Shall mobilize nonmembers to join the group
- ✓ Shall circulate information to members as regards the business opportunities available

Members

To form core of the executive, implementing decisions together with the executive members

Article 12: PASSING A VOTE OF NO CONFIDENCE TO AN EXECUTIVE MEMBER

This will be done when $\frac{3}{4}$ of the group members converge they will be mandated to pass a vote of no confidence. Reasons must be put forward in the general assembly as to why the executive is to be passed in a vote of no confidence. This will be done on the following grounds;

- + Embezzlement of group funds
- + Abuse of office
- + When he/she ceases to be of sound mind
- + When he/she breaches the constitutions
- + When he/she dies

Article 13: CESSATION OF MEMBERSHIP

A member shall cease to be a member if;

- He/she denounces Ugandan citizenship
- He/she is convicted of a capital offence
- He/she dies
- He/she breaches the constitution

No member shall be allowed to relinquish membership before paying back the group's loans or handing over the group's property if any, in his possession.

A member relinquishing his membership shall be refunded with what he owes and shall undersign the receipt of that refund.

A member absconding from the group with unpaid loans or group property shall be liable for prosecution in courts of law.

Any member, who fails to pay the annual subscription fee for a given period of time, loses his membership but shall be granted a chance to re-apply for membership.

Article14: RECORDS

The group shall have the following records

- Constitution
- Books of accounts
- Stamp and stamp pads
- Registration and attendance book
- Visitor's book
- Membership and savings book

Article15: AMENDMENTS

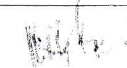
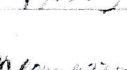
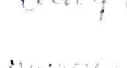
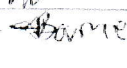
The group shall make amendments in the constitution and this shall be done in the presence of the majority of members

Article16: DECLARATION

This constitution has been read and understood by all members of the group on theday of.....20...

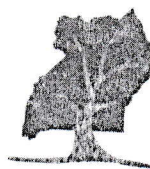
We the undersigned persons whose names, address, signatures appear under are subscribed and desirous of being formed into group in accordance with the constitution.

THE FOLLOWING ARE GROUP MEMBERS OF KIBAAL PARISH OUT GROWERS ASSOCIATION, KIBOGA DISTRICT.

NO	NAME	DESIGNATION	CONTACT	SIGNATURE
1	Bwambuka Joseph	Chairperson	075576394	
2	Bwambuka Joseph	V/Chair Person	0113243102	
3	MWOLLEZA John	Secretary	07891142626	
4	ANTHONY USABIMANA	Treasurer	0780282448	
5	BWESWIA FRED	Secretary for Publicity	0777792672 0707341985	
6	NAMUSOKE SANA	Member	0771164145	
7	TUMUHAMBISE TOM	Member	0770304303	
8	NAMURUMBE FRED		0151550397	
9	SSA KIRUMU		011 332 916	
10	KIRUMU		0777 302297	
11	BUSABANA		0113 243102	
12	Bwambuka		0783562089	
13	Namukanga		0771903734	
14	NTABARUKURU C		07941371141	
15	FRED BAMBANA		0788237967	
16	MUKATSA JAMES		0731969449	
17	Mwereye Tereza			
18	KABASEKE JOSE			
19	Bakimana		0778071426	
20	BARUMBERE		0722233564	
21	KWIZERA CHARLES		0783565001	
22	Katungile Paul		0119713489	
23	BARUGAMBE J.		0771661880	
24	NKABALA MONSIEUR		077037720	
25	SSA		077037720	



NO	NAME	DESIGNATION	CONTACT	SIGNATURE
26	KIBIRIGE PAULINE	Member	0753548897	Kibirige
27	MOMBWE SINDALI	1500	0784261020	Mombwe
28	MUTESI FURIDA		0772922059	Mutesi
29	HABYAMBERE CLEMENT	Member	0723876394	Habyemwe
30	UWABOANA JOHN	member	—	Uwaboana
31	KATABANWA DEVIDI	1500	0777717022	Katabanwa
32	BYARUGABA MUKATANGA	member	0788512879	Mukatanga
33	MUGAMBWA SEP	" "	0781658647	Mugambwa
34	MWEHIRE MUSA	"	0788939742	Mwehira
35	KABAGABIRE ANASTANGIA	"	—	Kabagabire
35	NABUKALU TOPISTA	MEMBER	0787384534	Nabukalu T.
36	MUGANGA BENDICIO	MEMBER	0779838225	muganga B



Not Transferable

THE NATIONAL FORESTRY AND TREE PLANTING ACT NO. 8/2003

TREE FARMING LICENSE IN CENTRAL FOREST RESERVES

No: Date:.....Management Range: Muzizi River Sector: Singo Hills

Subject to provisions of the National Forestry and Tree Planting Act (No. 8/2003) and any Regulations as saved by the Act or made there under and to the terms and conditions stated here in,(Licensee), of (Address) is hereby granted license by the National Forestry Authority (Licensor) to in CFR. This License is valid for a period of 25 years (..... 2006 –). Fees and other dues payable in respect of this license are specified in Section 6 of the attached License Agreement.

APPROVED (CO-ORDINATOR/FOREST UTILISATION)

Signature: Name: J. Ruhombe

AUTHORISED (DIRECTOR of FIELD OPERATIONS)

Signature: Name: Olav Bjella

Copies: Licensee, Range Manager; Finance Department



Not Transferable

THE NATIONAL FORESTRY AND TREE PLANTING ACT NO. 8/2003

TREE FARMING LICENSE IN CENTRAL FOREST RESERVES

No: Date:.....Management Range: Lakeshore Sector: Lwamunda

Subject to provisions of the National Forestry and Tree Planting Act (No. 8/2003) and any Regulations as saved by the Act or made there under and to the terms and conditions stated here in,(Licensee), of (Address) is hereby granted license by the National Forestry Authority (Licensor) to Establish a Commercial Forest Plantation on an area of inCFR.

This License is valid for a period of 25 years (..... 2006 –). Fees and other dues payable in respect of this license are specified in Section 6 of the attached License Agreement.

APPROVED (CO-ORDINATOR/FOREST UTILISATION)

Signature: Name: J. Ruhomba

AUTHORISED (DIRECTOR of FIELD OPERATIONS)

Signature: Name: Olav Bjella

Copies: Licensee, Range Manager; Finance Department

THE REPUBLIC OF UGANDA

LICENSE AGREEMENT

THIS LICENCE made this day of 200...

BETWEEN

THE NATIONAL FORESTRY AUTHORITY (hereinafter referred to as "LICENSOR" and shall where the context so admits include its successors) of Plot 10/20 Spring Road, P.O Box 70863 Kampala on the one part;

AND

..... (hereinafter referred to as "LICENSEE") of on the other part;

WHEREAS:

- a) The Licensor has been mandated by the National Forestry and Tree Planting Act 8/2003 to manage Central Forest Reserves (herein after referred to as CFRs) in Uganda;
- b) The Licensor is desirous of promoting the development of commercial forest plantations through issuance of tree farming licenses to private investors in designated CFRs;
- c) The Licensee has represented to the Licensor that the former possesses the requisite technical competences and financial resources to be able to establish a commercial forest plantation to the satisfaction of the latter;
- d) The Licensee is ready and willing to temporarily acquire usury rights to enter upon a designated CFR and establish a commercial forest plantation for the entire duration of the period envisaged herein;
- e) The Licensor has on the basis of the Licensee's representations entered into this agreement for purposes of regulating the Licensee's use of the land which is the subject of this license for the purpose stated herein and to standards that may from time to time be issued by the Licensor;
- f) The schedules attached to this agreement, any addenda, acknowledgement of receipt of payment from the Licensor and any communication incidental hereto shall be considered to be part and parcel of this license agreement;

WITNESSETH as follows:

1. GRANT OF LICENSE

In consideration of the payments herein agreed to be made by the Licensee to the Licensor and the covenants and conditions hereinafter contained and to be observed and performed by the Licensee, the Licensor hereby grants to the Licensee for the benefit of themselves and all persons authorised by them being their servants working thereat a license to enjoy the rights enumerated in clauses 2 & 3 herein at Taala CFR;

2. USE OF LAND IN THE CENTRAL FOREST RESERVE

- 2.1 The Licensee has by virtue of this License the rights to:
 - (a) Use an area measuring approximately 30 hectares of the CFR to establish and manage a commercial forest plantation, to build relevant infrastructure for this purpose with prior written consent of the licensor and to maintain the land referred to by this license **provided** the Licensee shall have obtained all the requisite consents, approvals and permissions as by law prescribed and by virtue of the conditions, performance standards and targets as set out in **Schedule A** (hereinafter referred to as the "additional conditions of licence") and the provisions of this license;
 - (b) Obtain access to the said land; and
 - (c) Own the crop established and maintained under this license.
- 2.2 The rights of the licensee as contained in clause 2.1 (a) herein shall be subject to his/her/its satisfactory performance in the two-year probationary period referred in clause 6 of this license.

3. EXCLUSIVE USE OF LAND IN THE CENTRAL FOREST RESERVE

These rights shall be exercised by the Licensee in common with all other persons now hereafter authorised by the Licensee to use any of the part or all of the area affected by the license except that no license shall be granted for the permitted use save as herein otherwise provided.

4. LIABILITY FOR DAMAGE OR USE

The Licensors shall not be liable to the Licensee or any of its authorised persons exercising these rights for any injury, damage, loss or inconvenience howsoever or by whosoever caused to them or to any goods or chattels brought by any such person onto the land, it being the intention of and agreed between the parties hereto that the Licensee and any other person exercising the rights on the land at the invitation of the Licensee shall do so at the risk of the Licensee; and the Licensee accordingly agrees to indemnify the Licensors against all claims (as herein defined) by any lawful visitor to the land who shall have entered thereon for the purpose (in whole and in part) of lawfully visiting the Licensee or any of their authorised persons or who shall have entered thereon with the permission of the Licensee. A claim shall mean a claim in respect of the condition of the land or breach of statutory common duty of care.

5. RETAINED RIGHTS

Without prejudice to the rights of the Licensee herein contained, the Licensors shall reserve the right to do the following:

- a) Right to inspect the land from time to time for purposes of monitoring the Licensee's performance in accordance with clause 12 herein;
- b) Right to any proprietary/legal title to the land which is the subject of this license in as far as the Licensors' role as manager shall mandate;
- c) Right to amend and/or adjust standards that may from time to time be established by the Licensors in accordance with clauses 12 & 14 herein;
- d) Right of ownership of any existing forest produce on land which is the subject of this license as at the date of commencement of the License; and
- e) Right to conduct environmental audits on the Licensee's systems, processes and procedures.

6. PERIOD OF THE LICENSE

- (a) This License shall be for a period of 50 (fifty) years subject to an initial probationary period of 24 (twenty) months commencing on the date of execution of this License;
- (b) Two months prior to the expiry of the probationary period, the Licensors shall evaluate the performance of the Licensee as per set performance standards and targets envisaged in **Schedule A** and form an opinion as to whether the licensee's license should continue with or without additional conditions.
- (c) The Licensors shall in the event of permitting the licensee to continue with this license subject to additional conditions referred to in clause 6(b) herein issue an addendum to this license to this effect.

7. CONSIDERATION FOR THE LICENSE, FOREST PRODUCE AND OTHER EXPENSES

- (a) The Licensee shall pay annual License fees of UGX. 9,900 (excluding VAT) per ha of land under use in addition to that which is to be put under use every successive year.
- (b) The Licensee shall in addition pay for existing forest produce (if any) on the land that he/she/its intends to convert.
- (c) The License fees and forest produce rates may be revised from time to time in accordance with the inflation index as determined by Bank of Uganda. That notwithstanding, every fifth year, rates shall be reviewed and may be adjusted in accordance with current market price as will have been determined by a committee established by both the Licensors and the tree farmers.
- (d) Where the License covers a part of a CFR, the Licensee shall pay proportional cost of the Licensors' expenses of establishing internal boundaries, access roads and other relevant infrastructure.

- (e) Contents of clause (a) notwithstanding, the licensee shall at all material times be responsible for the area of this license in terms of its mandate save in circumstances related to clause 16 herein.

8. COVENANTS BY THE LICENSEE

The Licensees hereby covenants with the Licensors as follows:

- a) To make payments in accordance with the above provisions whether the same is demanded or not;
- b) To pay all taxes/rates payable in respect of the land whether chargeable on the Licensors as manager of the land so far as such rates are attributable to the rights of the Licensees;
- c) Not to use the land for any purposes other than that stated in clause 2 above and in accordance Schedule A;
- d) To exercise the rights hereby granted and to ensure that the same shall be exercised by all its servants in accordance with the relevant provisions of the law and make adequate restoration and/or compensation for any damage nevertheless caused;
- e) To conduct its activities and to ensure that the rights hereby granted and the activities hereby authorised are exercised in a manner which does not in any way interfere with or adversely affect the enjoyment of the beneficiaries of the CFR for which the Licensors is accountable;
- f) To manage and maintain the land in an environmentally sound manner;
- g) Not to sub-license or part with the rights hereby granted over the land or any part thereof;
- h) Not to assign/transfer the benefits of/rights enjoyed under the License to a third party;
- i) To keep the Licensors indemnified against all damage, loss and injury of every description;
- j) Within one (1) calendar month of the termination of this License by effluxion of time or for any reason whatsoever upon receiving appropriate written request from the Licensors made either prior to such termination or within one calendar month thereafter to remove all the works and fixtures incidentally constructed on the land before or after the date hereof by the Licensee and to leave the land clean and tidy to the reasonable satisfaction of the Licensors.

9. TERMINATION OF THE LICENSE

9.1 The License may be terminated forthwith by notice being given by the Licensors:

- a) If the Licensees fails for a period of one hundred and eighty (180) days to remedy any breach (capable of remedy) of any of the stipulations and conditions herein contained after being required to remedy the same by notice in writing from the Licensors specifying the breach and requiring the same to be remedied;
- b) Upon such breach of the stipulations and conditions of this license, which in the opinion of the Licensors are incapable of being remedied and is stated so to be in the notice given by the Licensors;
- c) If a bankruptcy order is made against the Licensee or in case a resolution is made to wind up the License, or a winding up order is made or the License is wound up;
- d) Failure to establish and manage the commercial plantation in accordance national best forestry practice standards

9.2 In the event that the period envisaged in clause 9.1 (a) herein is deemed to be insufficient, the Licensors shall extend the time subject to justification by the Licensee.

9.3 The Licensee may also terminate this License upon expiry of one hundred and eighty (180) days after the date on which a prior written notice of the same has been issued and delivered to the Licensors in accordance with this license.

9.4 The licensee shall upon receipt of or issuance of a notice of intention to terminate the license be given an option by the licensors to dispose of his/her/its interest in the crop to a third party by way of sale subject to the licensors's prior written approval and the third party's express undertaking to be bound by the same conditions and provisions of this license as the licensee, in the event that the licensors declines the offer to buy the crop.

9.5 Termination of this license shall not absolve either party of its obligations to the other as at the date of termination of the license agreement.

10. FORCE MAJEURE

- a) Force majeure shall not include the following:
- i) Any event which is caused by the negligence or intentional action of a party, or the party's personnel or employee;
 - ii) Any event in which a diligent party could reasonably have been expected to take both into consideration at the same time of the conclusion of this contract and avoid or overcome in the performance of its obligations herein; and
 - iii) Insufficiency of funds or failure to make any payment required herein.
- b) Failure of either party to fulfil any of its obligations herein, shall not be considered to be breach of or default of contract in so far as such inability arises from an event of *force majeure*, provided that the party so affected has taken all reasonable precautions, due care and reasonable alternative measures, all with an intention to executing its obligations herein.
- c) A party affected by an event of *force majeure* shall take all reasonable measures to remove such party's inability to fulfil its obligations herein with minimal delay.
- d) A party affected by an occurrence of an event of *force majeure* shall notify the other party of such event as soon as is possible, but not later than fourteen (14) days following the first evidence of the nature and cause of such event; and shall similarly give notice to the restoration of normal conditions.
- e) The parties shall take all measures to minimize the consequences of any occurrence in *force majeure*.
- f) a party who has served notice of *force majeure* and has taken all reasonable steps to avoid such prevention or delay shall have no liability in respect of performance of its obligations under this license as are prevented by the *force majeure* event(s) during the continuation of such event(s), and for such time after they cease as is necessary for the party, using all reasonable endeavours, to recommence its affected activities in accordance with this license.

11. AGREEMENT NOT TO CREATE TENANCY

It is hereby agreed by both parties that this Agreement constitutes a License and confers no tenancy or other interest whatsoever to the Licensee and that possession of the land is retained by the Licensor subject however to the rights of the Licensee herein created

12. NOTICES AND AUTHORISED REPRESENTATIVES

All notices required to be given under this License shall be in writing and sent by post or facsimile to the address of the other party or such other address as the recipient may designate from time to time by way of a notice duly issued in accordance with this clause. Any such notice shall be deemed to have been delivered to an authorised representative of the party to whom the communication is addressed or when sent by registered post or facsimile to such other party at the following addresses:

- a) For the Licensor

The Director – Field Operations Division
Plot 10/20 Spring Road, P.O Box 70863, Kampala
Fax 041-230269

For the Licensee -

Notices will be deemed to have been effectively delivered in the following circumstances – for personal delivery – by registered mail, or; if it is by facsimile by transmission.

13. DISPUTES

- a) If at any time hereafter any dispute, doubt or question shall arise between the Licensor and the Licensee in relation to or incidental to this license, or in relation to its interpretation, meaning or effect or to any clause or thing herein contained or to the parties' respective rights and liabilities under this License or otherwise in relation to the land which is the subject of this license then every such dispute

shall be resolved by the parties herein in an amicable manner within thirty (30) days from the date of the dispute;

- b) In the event of failure to have the dispute resolved in a manner envisaged in clause 13 (a), the parties shall refer the matter to a mutually appointed mediator. In case the mediator fails to resolve the dispute the parties shall then refer the matter to court.

14. MODIFICATION OF THE PROVISIONS OF THE LICENSE

- a) The parties may modify the provisions of this license from time to time depending on the performance of the Licensee or where prevailing circumstance or the law requires such modifications;
b) Either party shall give due consideration to the other's proposals for modification and shall not unreasonably withhold the requisite consent; and
c) All consents shall be mutual and shall be expressed in writing as addenda to this License.

15. GOVERNING LAW

This License shall be construed in accordance with the laws of Uganda and each of the party agrees to submit to the non-exclusive jurisdiction of the courts of Uganda.

16. WARRANTIES

Subject to the Limitations set forth in this license agreement, the Licensor warrants that it has the right to license activities envisaged under this agreement and that if the Licensee exercises the rights entailed herein, they shall not infringe on any other third party's rights. The Licensor shall indemnify and hold the Licensee and authorized persons or visitors harmless for any losses suffered as a result of breach of warranty.

IN WITNESS WHEREOF the parties hereto have set their respective hands and seals this day and year first above written;

SIGNED and SEALED for and on
Behalf of THE NATIONAL FORESTRY
AUTHORITY – THE LICENSOR by

.....
J. RUHOMBE

DIRECTOR of FIELD OPERATIONS

In the presence of:

.....
OLAV BJELLA
EXECUTIVE DIRECTOR

SIGNED by the LICENSEE

.....
MANAGING DIRECTOR

In the presence of:

.....
ADVOCATE

SCHEDULE A: ADDITIONAL CONDITIONS OF THIS LICENSE TO BE OBSERVED BY THE LICENSEE

1. The Licence does not vest ownership of the land in the Licensee. Land remains vested in Uganda Land Commission under management of the National Forestry Authority.
2. The licensee and their servants and employees shall at all times assist in the detection, prevention and extinction of fires in or threatening the area the subject of this License, and in the prevention and detection of trespassers and forest offences.
3. The Licensee shall plant at least 10% of the total area of land allocated under this license on annual basis.
4. Within the probation period of this license and where applicable, the Licensee shall;
 - a. Prepare an appropriate management plan for the area under this License in consultation with the Licensor, where applicable;
 - b. Develop a business plan in consultation with the licensor, where applicable.
 - (c) Put in place the necessary infrastructure for implementing the management and business plan in consultation with the licensor; and
 - (d) Carry out the studies necessary for the fulfilment of 4(a)-(c) in consultation with the licensor.
5. The Licensee shall operate within the minimum quality standards. The Licensee shall approach the Licensor for guidance on minimum quality standards required.
6. The Licensor will, at any time during the currency of this license, bring to the attention of the licensee, any improvements required for good performance. If the licensee does not comply within the specified period in the manner envisaged in clauses 9.1 (a) or 9.1 (b), the Licensor may take any remedial action, including the cancellation of this license if necessary.
7. The use of "taungya" (growing of agricultural crops among trees) is prohibited, save for initial clearing, in which case a maximum of only one crop season will be allowed.
8. Tree species to be planted under this license are only those approved by the Licensor. The Licensor shall avail the licensee with a list of recommended species for the area which is subject to this license
9. In the interest of social responsibility, the Licensee shall endeavour to develop community outreach programmes and generally work with local communities.